

Data Processing Agreement

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Parties:

A (Controller)

Name:

Website:

Contact details (e-mail, phone):

B (Processor)

Name:

Website:

Contact details (e-mail, phone):

General description:

Party A, as the controller, possesses personal data and want to share it with the processor for the following process or service: (e.g. product name or service name)

@@

The **goal** of the processing is (provide service, detect fraud, pay salary):

@@

The **category** of data subjects / the group of people to whom the data relates is:

@@ (customers, candidates, users, students, ...)

The **type of data** that is shared (remove what is not applicable, add extra info):

name

Address

telephone number

E-mail

Date of birth

IP address

Photos

Test results

Orders

@@

The processing starts at the following date

The processing ends when the main agreement to provide the process or service ends.

General obligations and security

Parties agree to the following.

1. Both parties are aware of the General Data Protection Regulation and will jointly endeavor to meet all the requirements for controllers and processors according to the GDPR.

2. The processor will only process the personal data that falls under this agreement in line with the instructions from the controller. The processor may not use the personal data for its own purposes.
1. The processor will ensure that people employed by or working for the processor who have access to the personal data covered by this agreement sign a non-disclosure agreement.
2. The processor takes appropriate technical and organizational measures to make sure personal data is protected. The measures taken must include the measures from appendix 1.
3. After the processing services have ended, the processor will delete the data (or return it to the responsible party), unless it is legally obliged to keep it. This will be done as soon as possible, but in any case within four weeks after the end of the processing services.

Obligations regarding subprocessors

4. The processor does not share the personal data with any sub-processors except for the subprocessors listed under appendix 2, or after explicit written permission to use a new subprocessor.
5. The processor may not process the data outside the European Economic Area, unless otherwise agreed in writing and a suitable export mechanism (e.g. standard contractual clauses) is in place.
6. The processor establishes the same obligations for a sub-processor in a sub-processor data processing agreement as in this agreement.
7. In case of non-fulfillment of the obligations of the sub-processor, the processor is still liable for the fulfillment of obligations towards the controller.

Assistance and incidents

8. The processor will provide assistance to the controller so that the controller can meet its GDPR obligations, for instance in the case of an audit or investigation, the need to make a DPIA or when there is a data subject request.
9. The processor immediately reports information security incidents involving personal data covered under that DPA to the controller, so that the controller can investigate if this is a reportable data breach.

Signatures

Controller:	Processor:
Name:	Name:
Place, date:	Place, date:

Appendix 1: Information security measures

The processor must take appropriate technical and organizational measures to protect the personal data covered by this processing agreement. The measures taken must include the following measures (fill in any measures that are needed for your situation):

Information security measure	Required?
ISMS based on ISO 27001, verified by independent audits	
Daily or more frequent backups	
Website encryption, e.g. in line with internet.nl	

Appendix 2: Subprocessors

The processor can only share the personal data with the following subprocessors, or when additional written permission is given.

Subprocessor name	Website / location	Notes
Atlassian	https://www.atlassian.com/	Provides Jira
Microsoft	https://www.microsoft.com/nl-nl	Office tools
Crowdtech	https://crowdtech.com	Survey tool

Background of template

ICT Institute makes template such as these to help entrepreneurs with compliance. You can find the latest version of all our GDPR, AI Act and ISO 27001 templates on our website (<https://ictinstitute.nl/free-templates/>) but also on github:

<https://github.com/swzaken/freetemplates/>

The templates can be used and changed freely under creative commons license. If you are a customer of ICT Institute, you can remove all ICT Institute references.

This template was made based on the requirements of the GDPR itself and guidance from the Dutch Data Protection Authority (autoriteit persoonsgegevens). You can find more information via the following links:

- <https://ictinstitute.nl/gdpr-template-data-processing-agreement/>
- <https://gdpr-info.eu/art-28-gdpr/>
- <https://autoriteitpersoonsgegevens.nl/themas/basis-avg/avg-algemeen/verwerkersovereenkomst>